

IN THE SUPREME COURT OF PAKISTAN
(APPELLATE JURISDICTION)

PRESENT:

JUSTICE MALIK SHAHZAD AHMAD KHAN
JUSTICE AQEEL AHMED ABBASI
JUSTICE SHAKEEL AHMAD

CRIMINAL PETITION NOS. 178-K/2023, 179-K/2023, 110-K/2021, 111-K/2021 AND 231-K/2023

On appeal against the judgment dated 11.09.2023, of the High Court of Sindh at Karachi in Special Criminal A.T.A No.133 of 2020, Special Criminal A.T.A No.134 of 2020 and Confirmation case No.06 of 2020

Muhammad Zubair @ Chariya	(In Cr.P. 178-K/2023)
Abdul Rehman @ Bhola	(In Cr.P. 179-K/2023)
Husna Khatoon etc	(In Cr.Ps. 110-K & 111-K/2021)
Muttahida Qaumi Movement Pakistan through its Convener Dr. Khalid	
Maqbool Siddiqui	(In Cr.P. 231-K/2023)
	... Petitioners

Versus

The State through PG Sindh and another	(In Cr.Ps. 178-K, 179-K & 231-K/23)
ATC Court VII, Karachi and others	(In Cr.Ps. 110-K & 111-K/2021)
	... Respondents

For the Petitioners:	Dr. Muhammad Farogh Naseem ASC Mr. Hassan Sabir ASC (In Cr.Ps. 178-K, 179-K & 231-K/2023) Mr. Faisal Siddiqi ASC assisted by Syed Huzaifa Shah Advocate (In Cr.Ps. 110-K & 111-K/2021)
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For the State:	Mr. Khadim Hussain, Additional Prosecutor General Sindh
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Mr. Saleem Akhtar Buriro Additional
Prosecutor General Sindh
(Via video link Karachi)

Assisted by:	Mr. Ghulam Muhammad Adnan, Judicial Law Clerk
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Date of Hearing:	10.06.2026
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JUDGMENT

MALIK SHAHZAD AHMAD KHAN, J.- As common questions of law and facts are involved in all these petitions arising out of the same FIR, therefore, we proceed to decide all the said petitions through this single judgment.

2. Muhammad Zubair @ Charya and Abdul Rehman @ Bhola, petitioners (in criminal petition Nos.178-K/2023 and 179-K/2023),

were tried by the learned Anti Terrorism Court-VII, Central Prison at Karachi in case registered vide FIR No. 343, dated 12.09.2012 under Sections 384/385/386/435/436/302/324/337/109/34 PPC read with Section 7 of the Anti Terrorism Act, 1997 at Police Station Site-B, Karachi. The learned Trial Court vide its judgment dated 22.09.2020 convicted and sentenced the said petitioners as under:-

Under Section 7(a) of ATA

To death on 264 counts with fine of Rs.200,000/-, each.

Under Section 302(a) PPC read with Section 34 PPC

To death on 264 counts, each.

Under Section 7(b) of ATA

RI for life with fine of Rs.200,000/- each and in default thereof to further undergo SI for six months each.

Under Section 324 read with Section 34 PPC

To suffer RI for ten years for causing injuries to 60 persons on each count with fine of Rs.100,000/- each or in default thereof to further suffer SI for six months each.

Under Section 7(c) of the ATA

To suffer RI for life for causing injuries to 60 persons on each count with fine of Rs.200,000/- each or in default thereof to further suffer SI for six months each.

Under Section 7(h) of the ATA

To suffer RI for life with fine of Rs.200,000/- each or in default thereof to further suffer SI for six months each.

Under Section 435 PPC

To suffer RI for seven years each with fine of Rs.100,000/- each or in default thereof to further suffer SI for six months each.

Under Section 436 PPC

To suffer RI for life each with fine of Rs.200,000/- each or in default thereof to further suffer SI for six months each.

Under Section 384/34 PPC

To suffer RI for three years each with fine of Rs.100,000/- each or in default thereof to further suffer SI for six months each.

Under Section 385/34 PPC

To suffer RI for two years each with fine of Rs.50,000/- each or in default thereof to further suffer SI for six months each.

Under Section 386 PPC

To suffer RI for ten years each with fine of Rs.100,000/- each or in default thereof to further suffer SI for six months each.

The sentences of imprisonments were ordered to run concurrently with benefit of Section 382-B Cr.P.C. to the petitioners.

Four co-accused of the petitioners namely Muhammad Abdul Rauf Siddiqui, Umar Hassan, Dr. Abdul Sattar Khan and Mst. Iqbal Adeeb Khanum were acquitted whereas four co-accused of the petitioners namely Fazal Ahmed, Arshad Mehmood, Ali Muhammad and Shahrukh Lateef were convicted and sentenced for the charges under section 21-I ATA, 1997 read with sections 316/34/109 PPC by the learned Trial Court. In appeal, the learned High Court vide impugned Judgment dated 11.09.2023 upheld the judgment of the learned Trial Court to the extent of the petitioners. However, four co-accused of the petitioners namely Fazal Ahmed, Arshad Mehmood, Ali Muhammad and Shahrukh Lateef were acquitted of the charges, while extending them the benefit of doubt, hence, the above titled petitions before this Court.

3. It is contended by learned counsel for the petitioners that initially the FIR was lodged against the owners of Ali Enterprises Garments Factory, Karachi with the allegation that they did not take proper safety measures in their factory, which resulted into the loss of lives of around 264 persons whereas 60 workers of the factory were injured but after the lapse of about 2 & ½ years from the date of occurrence, the petitioners and their co-accused were implicated in this case while concocting a false and fabricated story; that in-

fact a political party i.e. Muttahida Qaumi Movement Pakistan was intended to be victimized on the basis of belatedly introduced false and fake allegations; that no cogent reason was given by the prosecution witnesses for the above-mentioned gross delay in making their statements before the police against the petitioners and their co-accused; that no tangible evidence was produced in this case by the prosecution in support of the newly introduced prosecution story; that the retracted judicial confession of Abdul Rehman @ Bhola petitioner was not recorded in accordance with the law and rules on the subject; that the said retracted judicial confession is not corroborated by any reliable independent evidence; that even according to the prosecution's own case the said petitioner was not present inside the factory at the time of incident; that the other petitioner namely Muhammad Zubair @ Charya has neither made any confession nor there is any other reliable evidence against the said petitioner; that one of the owners of the factory namely Arshad Bhaila appeared in the witness box as PW-397 but he did not allege that he had himself seen Muhammad Zubair @ Charya petitioner while setting his factory at fire; that he has also conceded during his cross-examination that after the occurrence he again employed Muhammad Zubair @ Charya petitioner in his other factory which shows that the allegation levelled against the said petitioner of setting at fire the factory of above-mentioned witness was absolutely false and baseless; that no documentary evidence was produced by the prosecution to establish that the prosecution eye-witnesses were present in the factory at the relevant date and time; that all the private prosecution witnesses produced by the

prosecution were initially made accused in this case but later on they were used against the petitioners and their co-accused by the prosecution and they made statements against the petitioner to save their own skins; that large number of injured witnesses were produced in the witness box but none of them has uttered a single word against the petitioners; that there is no report of Forensic Science Laboratory to establish that any chemical was used in setting the factory at fire with the help of chemicals, as claimed by the prosecution; that the alleged motive of demand of ransom which was also introduced after 2 & ½ years from the occurrence, was alleged against the leadership of the MQM Pakistan i.e., Abdul Rauf Siddique, Dr. Abdul Sattar Khan (co-accused) etc, who have already been acquitted from this case, whereas, no motive was proved against the petitioners; that nothing incriminating was recovered from the possession of the petitioners during the investigation of this case; that the prosecution has miserably failed to prove its case against the petitioners beyond the shadow of doubt. In support of his contentions, learned counsel placed reliance on the judgments reported as Ghulam Qadir Vs. The State (2008 SCMR 1221), Asghar Ali Alias Sabah Vs. The State (1992 SCMR 2088), Khan Bacha Vs. The State (PLD 2006 Karachi 698) and PC Veeran Khan Vs. The State (2024 YLR 2323).

4. Learned counsel for the petitioners in Criminal Petition No. 231-K of 2023 has argued that different observations and remarks were given in the impugned judgments of the courts below against a political party i.e. Muttahida Qaumi Movement Pakistan but neither there was any evidence nor there was any material to

support the said remarks/observations, therefore, the said remarks/observations may be expunged.

5. Learned counsel for the petitioners in Criminal Petition Nos. 110-K & 111-K of 2021 has argued that through the said petitions, he is representing the legal heirs of ten deceased persons of this case and none of them has been supporting the impugned judgments of the Courts below. He added that initially the FIR was rightly lodged against the owners of the factory on account of their negligence but later on a false, fabricated and concocted story was introduced by the prosecution through which Abdul Rehman @ Bhola and Muhammad Zubair @ Charya (petitioners of connected petitions) and their co-accused were implicated in this case. He further submits that there was no convincing evidence against the said accused/convicts, therefore, the legal heirs of the deceased pray for their acquittal in this case. He has finally argued that the legal heirs of the deceased have wrongly been denied the right of hearing while passing the impugned judgments, therefore, the same may be set aside and that no case was proved against the petitioners of Criminal Petition Nos. 178-K & 179-K of 2023 namely Muhammad Zubair @ Charya and Abdul Rehman @ Bhola, therefore, they may be acquitted of all the charges.

In support of his contentions, learned counsel relied upon the judgments reported as Muhammad Azam Vs. The State (2025 SCMR 810), Faisal Mehmood Vs. The State (2016 SCMR 2138) and Noor Muhammad Vs. The State (2020 SCMR 1049).

6. On the other hand, it is argued by learned Additional Prosecutor General, Sindh that the delay in recording the

statements of the prosecution witnesses by the police has plausibly been explained in this case by the prosecution witnesses while stating that there was threat by the leaders and activists of Muttahida Qaumi Movement Pakistan at the relevant time, therefore, they (prosecution witnesses) could not tell the truth at the initial stage of the case but when the said threat was over due to the intervention of the Joint Investigation Team, including the Rangers in this case, then the prosecution witnesses got the courage to bring the actual facts on the record; that mere delay in recording the statements of the prosecution witnesses, by itself is not fatal to the prosecution case because the said delay has plausibly been explained by the prosecution witnesses; that Abdul Rehman @ Bhola petitioner made a judicial confession before the concerned Magistrate, which was recorded in accordance with the law and rules on the subject; that the said judicial confession is fully corroborated by the prosecution witnesses who appeared in the witness box and their evidence could not be shaken during cross-examination; that Muhammad Arshad (PW-374) has categorically stated that he had seen Muhammad Zubair @ Charya petitioner along with five unknown boys, while sprinkling chemicals in the factory due to which the factory caught fire; that one of the owners of the factory namely Arshad Bhaila (PW-397) also stated that he was insisted by Abdul Rehman @ Bhola petitioner for the payment of ransom amount of rupees twenty five crore to the leaders of Muttahida Qaumi Movement; that serious allegations of demand of ransom, murders, setting the vehicles and properties at fire etc were common against MQM (A) at the relevant time, therefore, by taking

judicial notice of said facts, this Court may hold that the motive of the prosecution case has been proved in this case; that even otherwise, the prosecution has produced overwhelming oral, as well as, documentary evidence against the petitioners, which could not be shaken by the defense; that the petitioners could not establish any mala fide for their false involvement in this case; that there is no substance in all the above-titled petitions, therefore, the same may be dismissed. In support of his contentions, learned Law Officer has placed reliance on the judgments reported as Majeed Vs. The State (2010 SCMR 55), Faizullah Khan Vs. Abdul Razzaq (PLD 1987 SC 130) and Muhammad Yousaf Vs. The State (2000 SCMR 453).

7. Arguments heard. Record perused.

8. The Baldia Town Factory fire was one of the most unfortunate, painful and heart-rending tragedies in the history of this country, wherein 260 precious human lives were lost and about 60 persons sustained burn injuries. The victims were ordinary workers, who had entered the factory to earn their livelihood, but many of them could not come out alive. An incident of such magnitude, directly engaged the constitutional guarantee of life under Article 9 of the Constitution. The right to life cannot be guaranteed by mere existence on papers. It casts a corresponding duty upon the State to protect human life, to enforce safety obligations, and, where life is lost on such a massive scale, to conduct a prompt, scientific, impartial and effective inquiry/investigation, so that the actual cause of tragedy may be discovered and the real culprits, if any, may be brought before the Court to be dealt in accordance with the law. It is true that the

occurrence of the instant case was one of the most tragic incidents in the history of this country but at the same time we have also noted that initially the FIR of this case was lodged by the SHO of the concerned police station against the owners of the factory and its management with the allegations that they did not take proper safety measure in their factory. After about 2½ years from the occurrence, a new story was introduced in this case that the petitioners and their co-accused intentionally set at fire the abovementioned factory due to non-payment of ransom amount to a political party i.e., MQM Pakistan. On the other hand it is claim of the petitioners/convicts that they have been made scapegoats in this case in order to victimize the abovementioned political party. Under the circumstances and keeping in view the above-referred facts of this case, utmost caution and care is required to reach at the just conclusion of the case. It is also a duty of this Court to see that as to whether the prosecution has proved its case against an accused beyond the shadow of any doubt, in order to ensure that a person, who may be innocent, should not go to the gallows, merely on the basis of presumptions or on the basis of unreliable evidence and if tangible and reliable evidence free of any reasonable doubt is available on the record then a culprit must not go scot-free. Keeping in view the abovementioned both factors, we proceed to decide the above titled petitions.

9. First of all we take up the argument of the learned DPG that serious allegations of demand of ransom, murders, setting the vehicles and properties at fire were common against MQM (A) at the relevant time and by taking judicial notice of the said facts, this

Court may hold that the motive of the prosecution case has been proved against the petitioners. It is by now well settled that probabilities and presumptions how so ever strong cannot take the place of conclusive proofs which are required to convict and sentence an accused under the criminal justice system. Reference in this context may be made to the judgments reported as “Naveed Asghar and 2 others v. The State” (PLD 2021 Supreme Court 600), “Ghulam Qadir and 2 others v. The State” (2008 SCMR 1221) and “Abdul Mateen v. Sahib Khan and others” (PLD 2006 Supreme Court 538). In the case of Naveed Asghar and 2 others supra, at page No.636, it has been observed as under:-

“33. It is a well-established principle of administration of justice in criminal cases that finding of guilt against an accused person cannot be based merely on the high probabilities that may be inferred from evidence in a given case. The finding as regards his guilt should be rested surely and firmly on the evidence produced in the case and the plain inferences of guilt that may irresistibly be drawn from that evidence. Mere conjectures and probabilities cannot take the place of proof. If a case is decided merely on high probabilities regarding the existence or non-existence of a fact to prove the guilt of a person, the golden rule of giving “benefit of doubt” to an accused person, which has been a dominant feature of the administration of criminal justice in this country with the consistent approval of the Constitutional Courts, will be reduced to a naught.....”

Similarly in the case of Ghulam Qadir and 2 others, ibid, at page No.1228, it has been held as under:-

“16 ... A finding of guilt against an accused person cannot be based merely on the high probabilities that may be inferred from evidence in a given case. Mere conjectures and

and probabilities cannot take the place of proof. Muhammad
Lugman v. The State PLD 1970 SC 10.”

We are therefore clear in our minds that if there is no reliable evidence or conclusive proof against the petitioners in this case to prove the alleged motive or other charges of the prosecution, then, the convictions and sentences of the petitioners cannot be maintained merely on the basis of above-referred presumptions, probabilities, or general allegations.

We want here to put ourselves on the record for the purposes of history that for us the “Mohajars” are the most cherished, respectable and treasured part of our nation (Pakistani Nation). They rendered countless sacrifices for the creation of Pakistan. They are those citizen of this country who left the Indian part of the sub-continent at the time of partition of India and Pakistan in the year 1947. Millions of their family members were murdered or injured and they were forced to leave their houses and precious moveable/immovable properties in India. Many of them had to leave their blood relations like their real brothers or sisters etc in India and they themselves migrated to Pakistan with empty hands. They and their forefathers gave their blood to the foundation of this country. Mohajar Qaumi Movement is commonly considered to be the representative of majority of the “Mohajars”. We cannot imagine that the Pakistani people would be so thankless to forget the above and may other sacrifices of “Mohajir” nation. There may be some individuals who can be involved in minor, major or even heinous criminal acts but due to the acts of said individuals, the entire “Mohajar” nation or their abovementioned representative

party cannot be blamed or penalized merely on the basis of presumptions or general allegations, unless proved otherwise through tangible and convincing evidence.

10. Now coming to the merits of the case, we have noted that the FIR in this case was lodged by Muhammad Nawaz Gondal, SI/SHO of Police Station Site-B, Karachi. He stated in the FIR that on 11.09.2012 he along with other police employees was busy in the patrolling of the area, in order to control the crime. In the meanwhile, he received an information that a fire had broken in Ali Enterprises Garments Factory situated in Plot No. F-67, Karachi, at about 6.30 PM, whereupon, he reached at the spot at 06:45 PM and saw that the clothes in the factory had caught fire. He informed his high-ups, as well as, the fire brigade department, whereupon, heavy police contingents and vehicles of the fire brigade reached at the spot. He further stated that the firemen and vehicles of the fire brigade remained busy in extinguishing fire for the whole night and they succeeded to do so on the next day i.e. on 12.09.2012 at 02:00 PM (noon). He further stated that he inspected the ground floor of the above-mentioned factory and noticed that there were four gates of the factory for entry and exit of the workers and out of the said four gates, three gates were permanently shut down and iron made grills were installed on the windows of the factory, few months earlier, by the factory owner namely Abdul Aziz. It was also mentioned in the FIR that the factory owner Abdul Aziz and his sons Arshad Bhaila (PW-397), Shahid Bhaila and management of the factory had not made any proper arrangement for the emergency exit of the workers from the factory. The complainant further stated that

on account of fire which erupted in the factory, as many as 225 workers were found to be burnt to death till that time, whereas many were injured and the rescue teams were still removing more dead bodies from the factory. It was also stated in the FIR that due to the negligence and mala fides of the owners of the factory in collusion with the labour department, building control department, electricity department, social security department, civil defense and other concerned departments, the above-mentioned unfortunate incident had occurred due to which a large number of human lives were lost, hence, the FIR of this case. It is pertinent to mention here that later on total number of deceased persons came to 264 whereas total number of injured persons came to 60, in this case.

11. It is noteworthy that both the petitioners were not named as accused or in any other capacity, in the FIR. Rather owners of the factory namely Abdul Aziz, his sons Arshad Bhaila (PW-397), Shahid Bhaila and management of the factory were made accused therein. The occurrence in this case took place on 11.09.2012 at 06:30 PM and the FIR was lodged on the next day i.e. on 12.09.2012 at 04:00 PM. It is therefore evident from perusal of the record that the FIR was lodged after more than 21 hours from the occurrence. The complainant of the FIR namely Muhammad Nawaz Gondal, SI/SHO of the concerned Police Station lodged the FIR after a thorough inspection of the site. As mentioned above, he clearly stated in the contents of the FIR that out of four entry and exit gates of the factory, three were closed by the factory owners, few months before the occurrence. He further stated that iron grills were installed on the windows of the factory and no safe passage was

provided by the owners and management of the factory for emergency exit of the workers from the factory and thus he categorically levelled the allegation of negligence and mala fides against the owners of the factory and its management who were statedly in league with the different departments mentioned in the FIR like labour department, building control department, electricity department etc.

For about a period of 2 & ½ years, the prosecution case proceeded on the same lines. The pre-arrest bail petitions of owners of the above-mentioned factory namely Arshad Bhaila (PW-397) and his brother Shahid Bhaila were dismissed by the concerned Court, whereupon, they were arrested. However, later on they were granted post-arrest bails and they proceeded abroad. After the lapse of about 2 & ½ years, a completely new story was introduced in this case when statedly one Rizwan Qureshi accused was arrested in another case bearing FIR No. 61/2013 registered under Section 23(1)A of the Sindh Arms Act at Police Station Artillery Maidan, Karachi and during the investigation of the said case he allegedly made a disclosure before the Joint Investigation Team (JIT) of the said case that in-fact the above-mentioned Ali Enterprises Garments Factory was set at fire by the petitioners and their co-accused (since acquitted) due to non-payment of ransom amount by the owners of said factory to Muttahida Qaumi Movement (Altaf). On his above-mentioned disclosure, the petitioners and their ten co-accused total twelve (12) accused, were implicated in this case. The trial of ten accused persons including the petitioners was conducted by the learned Trial Court, whereas two co-accused of the petitioners

namely Hammad Siddiqui and Ali Hassan Qadri were declared as proclaimed offenders. After conclusion of the trial, four co-accused of the petitioners namely Abdul Rauf Siddiqui, Umer Hassan, Dr. Abdul Sattar Khan and Mst. Iqbal Adeeb Khanam were acquitted by the learned Trial Court and the appeal against their acquittals was also dismissed by the learned High Court vide the same impugned judgment dated 11.09.2023, whereas four co-accused of the petitioners namely Fazal Ahmed, Arshad Mehmood, Ali Muhammad (Guards of the factory gate) and Shahrukh Lateef (HR manager of the factory) were acquitted by the learned High Court.

12. According to the subsequently introduced story of the prosecution, a ransom amount of rupees twenty five (25) crore was demanded by the leaders of Muttahida Qaumi Movement (Altaf) from the owners of Ali Enterprises Garments Factory, Karachi and on account of non-payment of the said amount, the above-mentioned factory was set at fire by sprinkling chemicals in the factory by Muhammad Zubair @ Charya petitioner along with five unknown accused persons whereas the amount of ransom was demanded through Abdul Rehman @ Bhola petitioner who also supervised the entire above-mentioned incident of setting at fire the factory. The prosecution has produced 400 witnesses in this case but out of the said 400 witnesses only Muhammad Arshad (PW-374) has claimed that he had seen Muhammad Zubair @ Charya petitioner and his five unknown co-accused while sprinkling chemicals in the above-mentioned factory, due to which, the said factory caught fire whereas Arshad Bhaila (PW-397), who was one of the owners of the factory has stated that Abdul Rehman @ Bhola petitioner has

insisted before him on the payment of rupees twenty five (25) crore to Muttahida Qaumi Movement (Altaf). The statements of all the remaining witnesses are either formal or irrelevant or the same are based on weak or hearsay evidence. It is noteworthy that both the above-mentioned Muhammad Arshad (PW-374) and Arshad Bhaila (PW-397) were initially accused in this case but later on, with the delay of 2½ years they have been made the prosecution witnesses against the petitioners and as such they had a motive to falsely depose against the petitioners in order to save their own skins. It is noteworthy that the said witnesses never themselves contacted the law enforcing agencies regarding the changed prosecution story, which was introduced after a period of 2 & ½ years from the occurrence. The said story was introduced by the prosecution on the basis of the alleged disclosure of one Rizwan Qureshi accused arrested in another case, but surprisingly the said Rizwan Qureshi accused was also not produced before the trial Court in the instant case. He was neither implicated as an accused in this case nor he was declared a proclaimed offender nor produced as an approver or a witness in this case and as such the main foundation of this case is missing.

13. Learned Law Officer has heavily relied upon the retracted judicial confession of Abdul Rehman @ Bhola petitioner but it is by now well settled that a retracted judicial confession of an accused needs independent corroboration, which is very much lacking in this case. Even according to the said retracted judicial confession Abdul Rehman @ Bhola petitioner himself did not set at fire the above-mentioned factory and according to his confession

and according to the prosecution case, it was Muhammad Zubair @ Charya petitioner and his five unknown companions who had set at fire the said factory by sprinkling chemicals. In the light of above, to the extent of the allegation of setting the factory at fire, his retracted judicial confession is exculpatory in nature, hence the same is inadmissible in evidence to the said extent, whereas, there is no judicial confession of Muhammad Zubair @ Charya petitioner regarding the abovementioned allegation of intentionally setting at fire the factory. Insofar as the motive of demand of ransom amount is concerned, it is admitted by learned Law Officer that no ransom amount was paid in this case and the allegation of verbal demand of ransom was levelled against Abdul Rehman @ Bhola petitioner with the delay of 2 & ½ years from the date of occurrence. According to the retraced judicial confession of Abdul Rehman @ Bhola petitioner, the factory was set at fire by Muhammad Zubair @ Charya petitioner and his five unknown companions by sprinkling chemicals in the factory but in the Forensic Science Laboratory reports produced in this case, it has not been mentioned that any chemical was detected on the items collected from the spot and as sch there was no corroboration of the above alleged confession by any FSL report. No incriminating material was recovered from Abdul Rehman @ Bhola petitioner to corroborate his retracted judicial confession. In the above-mentioned judicial confession of Abdul Rehman @ Bhola petitioner it was also stated that he had committed 5/7 murders on the instructions of the leaders of Muttahida Qaumi Movement (Altaf) and he was also involved in other criminal acts of setting at fire the vehicles etc but no FIR was produced against the said petitioner to

corroborate this part of his retracted judicial confession. As there is no independent corroboration of retracted judicial confession of Abdul Rehman @ Bhola petitioner, therefore, his conviction and sentence cannot be maintained on the basis of said confession. Reference in this context may be made to the cases of Aala Muhammad Vs. The State (2008 SCMR 649), Muhammad Shafi Vs. Muhammad Raza (2008 SCMR 329), Muhammad Ismail Vs. The State (2017 SCMR 898) and Daniel Boyd Vs. The State (1992 SCMR 196). In the case of '**Aala Muhammad**' (supra), this Court while relying upon the earlier judgments of this Court has held as under:-

"The "retracted confession" may be treated to be sufficient to sustain conviction for the offence if the same is found to be voluntary and true but as a rule of prudence, the same should not be acted upon unless corroborated by some other reliable evidence. Reliance in this context can be placed to the cases of Arabistan and others v. The State 1992 SCMR 754 and Ch. Muhammad Yaqoob and others v. The State 1992 SCMR 1983."

In the case of '**Muhammad Shafi**' (ibid), it was observed as follows:

"There is no cavil to the proposition that a conviction can be based on retracted judicial confession provided it is corroborated by independent circumstantial evidence."

In the case of '**Muhammad Ismail**' (supra), the judicial confessions made by the accused/appellants before the Magistrate was retracted before the Trial Court and this Court while acquitting the accused of the said case has held as under:-

"Judicial confession allegedly made by accused persons/appellants before a Magistrate under S. 164, Cr.P.C. had been retracted before the Trial Court and in the absence of any independent corroboration such retracted judicial confession could not suffice all by itself for recording or upholding the accused persons' convictions."

In the case of '**Daniel Boyd**' (ibid), this Court observed as under:-

“Where the confession had been on one hand found inadmissible and on the other hand not voluntary and truthful to coincide with the facts of the case, Court considered it safe to rule out the retracted confession from consideration for Tazir punishment and necessarily it could not be used as circumstantial evidence as against the co-accused.”

We have further noted that the judicial confession of Abdul Rehman @ Bhola petitioner was recorded after nine days of his continuous police custody. According to the statement of Rehmatullah Domki, Acting AD CTW FIA (PW-369), the petitioner was arrested on 13.12.2016. However, his judicial confession was recorded on 22.12.2016. No cogent and convincing reason has been given by the prosecution for the said gross delay of nine (09) days after the arrest of the petitioner, in recording his alleged judicial confession. This fact has also created doubt regarding the making of judicial confession by the above-mentioned petitioner with his free will and consent. Reference in this context may be made to the judgments reported as Sher Ahmed Vs. The State (2025 SCMR 1717), Muhammad Pervez Vs. The State (2007 SCMR 670) and The State Vs. Ahmed Omar Sheikh (2021 SCMR 873).

In the case of Sher Ahmed (supra) the accused-appellants were charged for committing murder of the minor son of the complainant after kidnapping him for extorting money. Record showed that one accused was arrested on 05.07.2012 while other was arrested on 06.07.2012. Accused had remained in the police custody for a considerable time, their confessional statements were recorded on 11.07.2012 (i.e., after 5/6 days of their police custody)

and there was nothing on record to explain the delay in recording their judicial confessions. In this context this Court has held as follows:-

“A delayed confessional statement loses its evidentiary value.”

In the case of Muhammad Pervez (ibid) this Court was of the following view:-

“6. In case all the facts are put in a juxtaposition, then it is crystal clear that confessional statement was recorded after five days as the appellant Pervez was remained in the custody of the local police. It is a settled law the delay of over 24 hours would normally be fatal to the acceptance of judicial confession as law laid down by this Court in Naeqebullah's case PLD 1978 SC 21 coupled with the fact that prosecution had failed to explain the delay in recording the confessional statement. This fact created doubt qua the confessional piece of evidence.”

14. It is true that Arshad Bhaila (PW-397) had stated that before the occurrence Abdul Rehman @ Bhola petitioner, who was sector incharge of Muttahida Qaumi Movement (Altaf), met him and insisted to make the payment of rupees twenty five crore to Hammad Siddiqui (co-accused since PO) but as mentioned earlier Arshad Bhaila (PW-397) being owner of the factory was himself one of the accused at the initial stage of this case and he remained so for a period of 2 and ½ years. After a period of 2 & ½ years, for the first time he made the above-referred statement against Abdul Rehman @ Bhola petitioner. He could not give any plausible explanation that as to why he remained mum for such a long period. Although he made an excuse that he was under the threat of Muttahida Qaumi Movement (Altaf), therefore, he could not earlier narrate the actual facts to the law enforcing agencies but he had not disclosed that as to how and when he overcame the said threat. It is also noteworthy

that the said witness along with his other family members, who were owners of the factory proceeded abroad (Canada) after getting post arrest bails in this case and his evidence was recorded through video link from Pakistan consulate U.A.E. The said witness stated that he remained secured in Canada and other places after his shifting from Pakistan. He admitted that after his shifting from Pakistan, he did not disclose to any Court of law about intentional setting at fire his factory through chemicals till the JIT was constituted in this case.

Relevant part of his statement reads as under:-

“.....It is a fact that after shifting from Pakistan abroad I remained secure at Canada and anywhere else wherever I used to go. It is a fact that after my shift abroad I did not draw the attention of any of the competent Court of law situated inside the Pakistan for redressal of my grievance by disclosing all the facts and circumstances of the fire due to the result of arson till the JIT were formed.....”

As the said witness along with his entire family was living out of Pakistan since long after the occurrence, therefore, excuse given by the said witness of the threat of MQM (Altaf) does not appeal to a prudent mind. Moreover, the said witness being an accused at the initial stage of the case was himself facing the possibility of death penalty in this case. His bail petition was dismissed and he was arrested by the police, hence, under the circumstances mere oral threat by the Muttahida Qaumi Movement (Altaf) does not justify the above-mentioned long silence of the said witness after the occurrence particularly when on the other hand he was himself facing a case punishable with death sentence. Under the circumstances had the petitioners been involved in demanding

ransom from him and involved in intentionally setting his factory at fire, then he should have disclosed the said facts to the police, when he was arrested at the initial stage of this case, but he did not do so which fact creates serious doubt in the belatedly introduced story of the prosecution. In the light of above, the evidence of Arshad Bhaila (PW-397) who remained mum for a period of about 2 & ½ years after the occurrence without any plausible explanation is not worthy of reliance. Reference in this context may be made to the judgments reported as Ghulam Qadir Vs. The State (2008 SCMR 1221), Muhammad Asif Vs. The State (2017 SCMR 486) and Rahat Ali Vs. The State (2010 SCMR 584).

In the case of "*Ghulam Qadir*" ibid, this Court has held as follows:-

"Needless to emphasize that belated examination of a witness by the police may not be fatal to the prosecution case but where the delay is unexplained, accused has not been named in the F.I.R. and circumstances justify that the open F.I.R. and delay have purposely been manoeuvred to name the accused later, such managed delay and gaps adversely affect the prosecution case. The version of Muhammad Azam would denude his statement of all legal values, Mehmood Ahmad v. The State 1995 SCMR 127."

In the case of "*Muhammad Asif*" ibid, it was held by this Court as follows:-

"There is a long line of authorities/precedents of this court and the High Courts that even one or two days unexplained delay in recording the statement of eye-witnesses would be fatal and testimony of such witnesses cannot be safely relied upon."

In the case of "*Rahat Ali*" supra, this Court held as under:-

"Delay of 24 hours, 4 days and 15/20 days in reporting the matter to the police or recording the statement of witnesses

by the police has been found adversely affecting the veracity of witnesses as held in the cases of Muhammad Sadiq v. The State PLD 1960 SC 223, Sahib Gul v. Ziarat Gul 1976 SCMR 236 and Muhammad Iqbal v. State 1984 SCMR 930, respectively. It has also been observed by this Court that delay in recording the statement without furnishing any plausible explanation is also fatal to the prosecution case and the statement of such witness was not relied upon in the case of Syed Muhammad Shah v. State 1993 SCMR 550. Therefore, the evidence of PW-2 is coming within the scope of above rules laid down by this Court. Hence, his statement cannot be safely relied upon in the peculiar facts and circumstances of the present case.”

Similar view was taken by this Court in the cases of Fateh Khan Vs. The State (2025 SCMR 1408), Khial Muhammad Vs. The State (2024 SCMR 1490) and Bashir Muhammad Khan Vs. The State (2022 SCMR 986).

We are therefore, of the view that retracted judicial confession of Abdul Rehman @ Bhola Petitioner has not been corroborated by any reliable independent evidence. Moreover, the said confession was recorded with the considerable delay of nine (09) days after the arrest of the petitioner by the police without giving any valid reason to justify the said gross delay, which delay raises serious questions about making of the above judicial confession with free will of the accused, hence the same cannot be relied upon to maintain and uphold the convictions and sentences of the Petitioners.

15. The prosecution levelled the allegation against the other petitioner namely Muhammad Zubair @ Charya that he along with his five unknown co-accused sprinkled chemicals in the factory due to which the factory caught fire. The said petitioner was statedly himself an employee in the above-mentioned factory. In order to prove the above-mentioned allegation, the prosecution has produced

Muhammad Arshad (PW-374) who stated that on 11.09.2012 he was asked by Muhammad Zubair @ Charya petitioner to come in the evening in the factory as his (petitioner's) guests were coming and in the evening when he (PW-374), came in the factory, after some time, the said Petitioner and his 5 unknown companions set at fire the factory by sprinkling chemicals. It is not understandable that if Muhammad Zubair @ Charya petitioner had any intention to sprinkle chemicals in the factory to set the same at fire, in the evening, then as to why he would ask Muhammad Arshad (PW-374) to come in the evening so that he may become a witness against him. Furthermore, according to his statement Muhammad Arshad (PW-374) was himself a fitter in the factory. He was neither a cook nor a waiter in the factory and as such there was no reason to ask him to come in the factory in the evening for the guests. We have further noted that the owner of the factory namely Arshad Bhaila (PW-397) has admitted during his cross-examination that after the occurrence he had employed Muhammad Zubair @ Charya petitioner in his other factory whereas in his earlier part of evidence he had stated that he was informed by Muhammad Kashif (PW-360) that he (Muhammad Kashif) had seen Muhammad Zubair @ Charya petitioner after the occurrence while smoking cigarettes in a cool manner and he (Muhammad Kashif PW-360) was confident that Muhammad Zubair @ Charya petitioner was responsible for the present incident. Relevant parts of his statement are reproduced hereunder for ready reference:-

“One of our employee Kashif Batikwala working with our contractor, informed that at the time of occurrence of fire he had seen Zubair along with 4-5 culprits being strangers inside the factory, while smoking charas filled cigarettes in a casual

and relaxed manner on the day of occurrence. He also disclosed that when he saw Zubair and 4/5 new stranger boys in a casual mode he went shocked that the factory were (sic) under circles of high rise flames of fire and they were not worried in that regard. Kashif informed that according to him Zubair were (sic) definitely involved in the said occurrence inside the factory.

.....

.....

It is a fact that after the occurrence we set a factory in Godhra Camp at New Karachi. It is a fact that in the said Godhra Factory accused Zubair also served with us.”

If Arshad Bhaila (PW-397) who was owner of the factory was already told by his other employee Muhammad Kashif (PW-360) that his factory was set at fire by Muhammad Zubair @ Charya petitioner along with his unknown companions then it was impossible that he would again employee the said petitioner after the occurrence in his other factory. The evidence of said witness shows that he himself was sure about the innocence of Muhammad Zubair @ Charya petitioner, otherwise, he would not have employed the said petitioner after the occurrence in his other factory, if he had a slightest doubt in his mind that Muhammad Zubair@ Charya petitioner had already set at fire his previous factory.

It is further noteworthy that Muhammad Kashif (PW-360) has not stated that he had seen Muhammad Zubair @ Charya petitioner after the occurrence while smoking cigarette in a cool manner or he (PW-360) was confident that the fire was set by the said petitioner or he told any such fact to Arshad Bhaila (PW-397).

16. As mentioned earlier, Muhammad Arshad (PW-374) was himself an accused in this case at the initial stage and he remained so, for a period of about 2 & ½ years. He also remained mum for

such a long time. His allegation against Muhammad Zubair @ Charya petitioner that he sprinkled chemicals in the factory due to which it caught fire was not corroborated by the reports of Forensic Science Laboratories because in none of the said reports, it was mentioned that any chemical was detected on the articles recovered from the spot. Furthermore, it was noted in one of the said reports that due to the acts of fire brigade, fire extinguishers and due to the lapse of time, the crime scene was compromised. We have also noted that nothing has been brought on the record to establish that the crime scene was secured after the occurrence, whereas the articles were recovered from the spot and sent to the office of chemical examiner/Forensic Science Laboratory with the delay of almost three years from the occurrence. Even the learned High Court has noted in the impugned judgment that a high-powered commission constituted in this case declined to carry out expert chemical tests to conclusively uncover the cause of fire. In the concluding paragraphs of the impugned judgment, at page No.45, it was observed as under:-

“.....even a high powered commission declined to carry out expert chemical tests to conclusively uncover the cause of fire”

We are, therefore, of the view that the belatedly introduced prosecution story of intentionally setting the factory at fire with the help of chemicals has not been corroborated by any report of Forensic Science Laboratory. It is true that in one of the Forensic Science Laboratory reports, it was opined that due to discontinued pattern of fire, there was chance of human intervention in this case

but again the fact remains that the presence of any chemical on the articles recovered from the spot was not mentioned in the said report. Moreover, there may be different types of human interventions like the fire may broke on account of throwing a partially burnt/smoked cigarette at the spot by a human being or if a human being was cooking tea or food with the help of kerosine stove etc and due to the said stove the articles at the scene may have caught fire, but again the fact remains that even in the said report, it is not mentioned that any chemicals were used to ignite fire, therefore, the said report does not support/corroborate the subsequently introduced story of the prosecution.

17. Most importantly, the injured witnesses are always considered to be the star witnesses of a case because their presence at the spot cannot be denied due to the stamps of injuries on their bodies. There were 60 injured of this case and out of the said injured, 34 injured appeared in the witness box but none of them uttered a single word against both the petitioners that they played any role in the occurrence. Rather Liaquat Hussain injured (PW-315) and Saleem Khan injured (PW-372) have stated as under:-

Liaquat Hussain (PW-315)

“I found the fire erupted at ground floor. I did not find any suspect in the said area where fire taken place.”

Saleem Khan (PW-372)

“It is a fact that I did not see anybody while causing/blowing fire through any mode and even throwing chemical inside the factory.”

According to the prosecution case, the fire erupted when the said witnesses were present inside the factory and they received burn injuries on their bodies, therefore, they must had seen

the person(s) who was/were allegedly sprinkling chemicals and setting at fire the factory but they (injured PWs) did not support the said allegation of the prosecution against the petitioners.

On the other hand all the prosecution eye-witnesses who had deposed against the Petitioners are neither injured witnesses nor they produced any convincing evidence regarding their presence at the spot on the day of occurrence. It is noteworthy that Muhammad Arshad (PW-374) has stated that there was a room adjacent to the main gate of the factory and record was also maintained in the factory regarding the entry and exit of workers etc in the factory. Relevant part of his statement reads as under:-

“It is a fact that the said factory had one main gate for entrance and exit and there was HR department just after its entrance, where the attendance were marked.”

We have noted that no record of the factory was produced by the prosecution to establish that Muhammad Zubair @ Charya petitioner or his five unknown guests entered the factory on the day of occurrence. We have further noted that all the injured prosecution witnesses have produced their service cards of Ali Enterprises Garments Factory before the learned Trial Court while entering in the witness box but as mentioned earlier the said injured witnesses had not uttered a single word against the petitioners. On the other hand, the prosecution witnesses who had deposed against the petitioners including Muhammad Arshad (PW-374) have not produced their service cards at the time of recording of their evidence. Furthermore Muhammad Arshad (PW-374) has admitted that he had not given the address of Ali Enterprises Garments Factory in his statements recorded by the Magistrate or recorded

under Section 161 Cr.P.C. He also stated that he was summoned from Punjab, whereafter he gave his evidence in this case against the petitioners. Relevant part of his statement is reproduced hereunder:-

“It is a fact that in my statement before the Magistrate I did not narrate for my residence at the godown of said factory. It is a fact that in my 161 Cr.P.C statement I recorded my permanent address of Punjab and not of my residence shown at Karachi.....
.....I was called from Punjab about 2-3 days prior to the recording of my statement before police.”

Under the circumstances, the presence of Muhammad Arshad (PW-374) and other witnesses who deposed against the petitioners except Arshad Bhaila (PW-397), at the spot at the time of occurrence, is not free from doubt, whereas, Arshad Bhaila (PW-397), has not stated that he himself or anybody else had seen Muhammad Zubair @ Charya petitioner while setting at fire his factory by sprinkling chemicals. The abovementioned witness Muhammad Arshad (PW-374) further stated as under:-

“It is a fact that in my 161 Cr.P.C. statement it appears that I along with Zubair went to finishing department, exit the ladies workers from finishing department.”

His above-mentioned statement shows that in his statement before the police, he had stated that Muhammad Zubair @ Charya petitioner tried to save the lives of female workers of the factory but he changed his evidence and made dishonest improvements in his statement while appearing before the Trial Court qua the role of Muhammad Zubair @ Charya petitioner. it is by now well settled that the evidence of a witness, who makes dishonest improvements about material facts of the case is not

worthy of reliance, as observed in the judgments reported as Naveed Asghar Vs. The State (PLD 2021 SC 600), Muhammad Javed Vs. The State (2020 SCMR 2116), Farman Ahmed Vs. The State (2007 SCMR 1825), and Ibrar Hussain Vs. The State (2007 SCMR 605)

In the case of Naveed Asghar *ibid*, it was held by this Court as follows:-

“17. Deliberate and dishonest improvements made by a witness in his statement to strengthen the prosecution case cast serious doubts on his veracity, and makes him untrustworthy and unreliable. It is quite unsafe to rely on testimony of such witness, even on facts deposed by him other than those improvements unless it receives corroboration from some other independent piece of reliable evidence.¹⁷ In the case of *Shahzada v. Hamidullah*,¹⁸ a five-member Bench of this Court, on appraising the evidence of a witness, found that he had improved upon the version he had earlier given to the police while making statement in Court, and upon such finding held that the improvement had affected his veracity rendering it unsafe to rely upon his evidence. Hamoodur Rahman, J., speaking for the Bench observed: “[The witness] also tried to improve upon the version he earlier gave to the police by introducing the story of his having seen the [accused] respondent Hamidullah actually loading his gun in the middle of the bazar. In his police statement he had only stated that when he saw Hamidullah first he appeared to be proceeding to the shop of the deceased to purchase snuff. This definite attempt at embellishment clearly affected his veracity and rendered it unsafe to rely upon his evidence.” In the case of *Akhtar Ali v. State*¹⁹ the complainant initially made statement that four unknown persons had committed the offence and did not name any person therein, but subsequently nominated the accused persons in his supplementary statement despite the fact that one of the accused person was already known to him. A four-member Bench of this Court, which heard the case, noted with concern that improvement made by the complainant even during investigation and discarded his testimony making the observations that “when a witness improves his version to strengthen the prosecution case, his improved statement subsequently made cannot be relied upon as the witness has improved his statement dishonestly, therefore, his credibility becomes doubtful.””

In the case of *Farman Ahmed supra*, this Court held as under:-

“It is also a settled maxim when a witness improves his version to strengthen the prosecution case, his improved statement

subsequently made cannot be relied upon as the witness had improved his statement dishonestly, therefore, his credibility becomes doubtful on the well-known principle of criminal jurisprudence that improvements once found deliberate and dishonest cast serious doubt on the veracity of such witnesses.”

In the case of Ibrar Hussain ibid, this Court held as follows:-

“It is an admitted fact that in case the contents of the F.I.R., statement of the victim dated 5-9-2002, contents of the complaint and her statement before the Court are put in a juxtaposition then it is crystal clear that her statements are not in consonance with each other coupled' with the fact that there were contradictions, discrepancies, improvements and omissions on material points. It is a settled law that person making contradictory statements cannot be held worthy and credence as law laid down by this Court in Muhammad Shafique Ahmad's case PLD 1986 SC 471. It is a settled law that witness making improvements and changing version as and when suited according to the situation then such type of improvements were found deliberate and dishonest, therefore, cause serious doubt on the veracity of such witness.”

18. It was also brought on the record that CCTV cameras were installed in Ali Enterprises Garments Factory but recording of the said CCTV Cameras was never produced in this case. The best evidence of CCTV camera recordings has been withheld by the prosecution, therefore, an adverse inference under Article 129(g) of Qanun-e-Shahadat Order, 1984 can validly be drawn against the prosecution that had the said evidence been produced then the same would not have supported the prosecution case. This fact has created another serious dent in the prosecution story. Reference in this context may be made to the cases of Azhar Iqbal Vs. The State (2026 SCMR 182), Lal Khan Vs. The State (2006 SCMR 1846), Riaz Ahmed Vs. The State (2010 SCMR 846) and Riasat Ali Vs. The State (2024 SCMR 1224).

In the case of “Azhar Iqbal” ibid, it was held by this Court as follows:-

“It has been admitted by the prosecution witnesses that the CCTV cameras were installed in the corridors situated outside the courtrooms, however, it is claimed by the prosecution that there was no CCTV camera installed inside the courtroom where the occurrence took place, which claim has been controverted by learned counsel for the petitioners. We have noted that no report of the concerned Court was produced in the prosecution evidence that CCTV cameras were not installed inside the courtroom of Mr. Muhammad Aslam Gondal, ASJ Gujranwala, on the day of occurrence. Even CCTV footage of the cameras installed in the corridor outside the courtrooms was not produced in the prosecution evidence in order to establish that the petitioners were present at the spot or they can be seen in the said camera recordings while entering and coming out of the abovementioned courtroom at the time of occurrence. An excuse was made in this respect by the prosecution that the even CCTV cameras installed in the corridors outside the abovementioned courtroom were out of order on the relevant day but as mentioned earlier, no report of the district Courts Gujranwala was produced in this respect by the prosecution in support of its abovementioned claim. We are, therefore, of the view that an important piece of evidence was withheld by the prosecution without any valid justification, therefore, an adverse inference under Article 129(g) of Qanun-e-Shahadat Order, 1984, can validly be drawn against the prosecution that had the above-mentioned piece of evidence (CCTV camera recordings) been produced in the evidence, the same would not have supported the prosecution case.”

In the case of “*Lal Khan*” *ibid*, it was held by this Court as follows:-

“The act of withholding of most natural and a material witness of the occurrence would create an impression that the witness if would have been brought into witness-box, he might not have supported the prosecution and in such eventuality the prosecution must not be in a position to avoid the consequence. The non-production of any other inmate of the house by the prosecution and subsequent change of initial version of the occurrence by Mst. Noor Bibi not only, would seriously reflect upon the credibility of her testimony but also create a reasonable doubt regarding the correctness of the subsequent version of homicidal death of deceased set up by the prosecution.”

In the case of “*Riaz Ahmed*” *ibid*, this Court has observed as follows:-

“One of the eye-witnesses Manzoor Hussain was available in the Court on 29-7-2002 but the prosecution did not examine him, declaring him as unnecessary witness without realizing the fact that he was the most important, only serving witness, being an eye-witness of the occurrence. Therefore, his evidence was the best piece of the evidence, which the

prosecution could have relied upon for proving the case but for the reasons best known, his evidence was withheld and he was not examined. So a presumption under Illustration (g) of Article 129 of Qanun-e-Shahadat Order, 1984 can fairly be drawn that had the eye-witness Manzoor Hussain been examined in the Court his evidence would have been unfavourable to the prosecution.”

In the case of “*Riasat Ali*” supra, this Court held as under:-

“22. The prosecution has not produced witness Muhammad Nawaz at the trial who was allegedly accompanying PW.14, PW.15 and deceased Pervez Iqbal at the time of occurrence. Under Article 129(g) of the Qanun-e-Shahadat Order, 1984 adverse inference is drawn to the effect that had he been produced by the prosecution at the trial, he would not have supported the case of the prosecution.”

It is therefore clear that whenever the best evidence is withheld by the prosecution then the prosecution cannot avoid its adverse consequences hence, non-production of CCTV cameras recordings which were admittedly installed at the spot, is fatal to the prosecution’s subsequently introduced story.

19. The statements of Amir (PW-373), Muhammad Mansoor (PW-376), Muhammad Kashif (PW-360) and Abdul Raees (PW-361) are also unreliable. The said witnesses stated that they saw Muhammad Zubair @ Charya petitioner and his five unknown companions after the occurrence while smoking cigarettes in a cool manner. They also stated that after the occurrence, Muhammad Zubair @ Charya petitioner locked the doors of the factory so that the workers may not come out of the factory to save their lives but none of the said witnesses had stated that they had seen Muhammad Zubair @ Charya petitioner or his unknown companions while sprinkling chemicals and setting at fire the factory. Their evidence regarding locking the doors of the factory is highly unreliable because according to the prosecution's own case Fazal Ahmad co-accused

Arshad Mehmood co-accused and Ali Muhammad co-accused who were guards of the factory gates were present at the spot at the relevant time. In the presence of said guards it was not possible for Muhammad Zubair @ Charya petitioner who was not carrying any weapon at that time, to lock the doors of the factory. The abovementioned guards/co-accused have already been acquitted by the High Court and no appeal against their acquittal has been filed by the prosecution. Furthermore, as mentioned earlier the FIR was lodged by the SHO of the area with the delay of 21 hours from the occurrence, after thorough inspection of the site and in the FIR it was categorically mentioned that out of total four (04) doors, three doors of the factory were locked by the owners of the factory few months earlier to the occurrence, however, one door was still open which was not sufficient for emergency exit of the workers. He had not stated that the said single door was locked from outside at the time of his visit to the factory and as such there is no substance in the grossly delayed evidence of above-mentioned prosecution witnesses that the doors of the factory were locked from outside at the time of occurrence by Muhammad Zubair @ Charya petitioner. As mentioned earlier, the said witnesses neither produced their service cards of the factory nor attendance register of the factory to establish their presence inside the factory on the day of occurrence. Under the above circumstances their evidence is not worthy of reliance.

20. We have further noted that there was no personal motive with the petitioners to commit the occurrence. According to the prosecution's own case, the ransom amount was demanded by

the leaders of Muttahida Qaumi Movement (Altaf) but the leaders of the said party namely Abdul Rauf Siddiqui, Dr. Abdul Sattar Khan etc have already been acquitted by the learned Trial Court and the appeal against their acquittal has also been dismissed by the learned High Court vide the impugned judgment. No petition has been filed against them before this Court, therefore, the motive which has been disbelieved against the leaders of the above-mentioned party cannot be believed against the petitioners.

We have further noted that Mansoor (PW-376) has stated before the learned Trial Court that Muhammad Zubair @ Charya petitioner and majority of employees/workers of the factory were affiliated with Muttahida Qaumi Movement (A). According to the prosecution’s own case, both the petitioners were also workers of the same party. Relevant part of the statement of Mansoor (PW-376) reads as under:-

“Major portion/large number of the employees and workers working in the said factory were affiliated with the MQM (A) and also were in the command of MQM (A).
.....
.....
Zubair Lala the employee of said Ali Enterprises, working as an incharge of finishing department was also an active in such like activities inside the factory. He was also an active and affiliated worker of MQM (A).”

Under the circumstances there was absolutely no reason with the petitioners to set at fire the deceased and injured persons of this case who were poor workers of the same party to which they (petitioners) themselves belonged and which party has been made an accused in this case. Furthermore, the ransom amount was not demanded from the workers who are deceased or the injured persons of this case rather the same was demanded from

the factory owners including Arshad Bhaila (PW-397) but the owners did not receive a single scratch on their bodies during the occurrence though they were present at the spot at the time of occurrence.

We are therefore of the considered view that the prosecution has also failed to prove the alleged motive of this case.

21. It is further noteworthy that not a single legal heir of the deceased persons or a single injured of this case has supported the prosecution case against the petitioners. Even today, Mr. Faisal Siddiqui, ASC, who appeared before the Court in Criminal Petition Nos. 110-K & 111-K of 2021 filed on behalf of some of the legal heirs of ten deceased persons of this case has vehemently opposed the impugned judgment and prayed for the acquittal of the petitioners inter-alia on the grounds that the prosecution case against the petitioners is false and concocted one and the same is based on mala fides to make the petitioners as scapegoats in this case.

22. The facts of the judgments reported as Majeed Vs. The State (2010 SCMR 55) cited by the learned Additional Prosecutor General Sindh are distinguishable from the facts of the present case. In the above judgment, the judicial confession of the accused was corroborated by the dying declaration of the deceased, therefore, the same was relied upon to maintain the conviction and sentence of the accused of said case whereas in the instant case there is no independent corroboration of the retracted judicial confession of the accused of the present case. As mentioned earlier, the injured of the instant case, as well as, the legal heirs of some of the deceased persons of this case have not supported the prosecution case against the petitioners, hence, the retracted judicial confession of Abdul

Rehman @ Bhola petitioner is neither corroborated by the evidence of any injured witness of this case nor the same has been corroborated by any incriminating recovery or report of Forensic Science Laboratory, therefore, the case of “Majeed” supra is not relevant in this case. The remaining judgments cited by the learned Law Officer in the cases of “**Muhammad Yousaf**” and “**Faizullah Khan**” are also distinguishable on their own facts, hence, the same are of no avail to the prosecution.

23. Keeping in view all the aforementioned facts, we have come to this irresistible conclusion that the prosecution has failed to prove its case against the petitioners beyond the shadow of doubt. It is by now well settled that if there is a single circumstance, which creates doubt in the prosecution case then the same is sufficient to acquit the accused, whereas the instant case is replete with number of circumstances, which have created serious doubts in the prosecution story. Reference in this context may be made to the judgments reported as Tariq Pervez Vs The State (1995 SCMR 1345) and Muhammad Akram Vs The State (2009 SCMR 230).

24. Consequently, Criminal Petition Nos.178-K/2023 and 179-K/2023 are converted into appeals and the same are allowed. The judgments dated 11.09.2023 and 22.09.2020 of the learned High Court and the learned Trial Court, respectively, are hereby set aside. Muhammad Zubair @ Charya petitioner and Abdul Rehman @ Bhola petitioner are acquitted of all the charges while extending them the benefit of doubt. They shall be released forthwith from the jail unless required to be detained in any other case.

CRIMINAL PETITION NO.231-K OF 2023

25. Due to the reasons mentioned in the detailed judgment of even date passed in connected Criminal Petition Nos. 178-K/2023 & 179-K/2023, it has been concluded that the prosecution has failed to prove its case including the alleged motive against the accused. Consequently, Criminal Petition No. 231-K of 2023, for expunction of the remarks given in the impugned judgments of the Courts below, against a political party i.e., Muttahida Qaumi Movement Pakistan has borne fruits, hence, the instant petition stands disposed of accordingly.

CRIMINAL PETITION NOS. 110-K/2021 & 111-K/2021

26. These petitions have been filed on behalf of some of the legal heirs of ten (10) deceased persons of this case. Learned counsel for the petitioners has argued that he does not support the impugned judgments of the Courts below. He adds that the accused subsequently implicated in this case (petitioners of Criminal Petition Nos.178-K/2023 and 179-K/2023), are innocent, who have been made scapegoats in this case, the subsequently introduced prosecution story is false and concocted one and no case was proved against the said accused/petitioners, therefore, they may be acquitted of the charges.

As we have already acquitted the accused/petitioners in Criminal Petition Nos.178-K/2023 & 179-K/2023, due to the reasons mentioned in the detailed judgment of even date passed in the abovementioned connected Criminal Petitions, therefore,

Criminal Petition Nos.110-K/2023 & 111-K/2023, have become infructuous and disposed of accordingly.

27. Above are the details reasons of our short order of even date i.e., 10.06.2026, which is reproduced hereunder:-

CRIMINAL PETITION NOS.178-K/2023 & 179-K/2023

For the reasons to be recorded later, Criminal Petition Nos.178-K/2023 & 179-K/2023, are converted into appeals and the same are allowed. The impugned judgments dated 11.09.2023 and 22.09.2020, passed by the learned High Court and the learned trial Court respectively are hereby set-aside. Muhammad Zubair alias Chariya and Abdul Rehman alias Bhola (petitioners), are acquitted of all the charges while extending them the benefit of doubt. They shall be released forthwith from the jail if not required to be detained in any other case.

CRIMINAL PETITION NO.231-K OF 2023

2. Due to the reasons mentioned in the detailed judgment of even date in Criminal Petition Nos.178-K/2023 and 179-K/2023, it has been concluded that the prosecution has failed to prove its case including the alleged motive against the accused. Consequently, criminal petition No.231-K/2023, for expunction of the remarks given in the impugned judgments of the Courts below, against a political party i.e., Muttahida Qaumi Movement Pakistan has borne fruits, hence the instant petition stands disposed of accordingly.

CRIMINAL PETITION NOS.110-K/2021 & 111-K/2021

3. These petitions have been filed on behalf of some of the legal heirs of ten (10) deceased persons of this case. Learned counsel for the petitioners has argued that he does not support the impugned judgments of the Courts below. He adds that the accused subsequently implicated in this case (petitioners of Criminal Petition Nos.178-K/2023 and 179-K/2023), are innocent, who have been made scapegoats in this case, the subsequently introduced prosecution story is false and concocted one and no case was proved against the said accused/petitioners, therefore, they may be acquitted of the charges.

As we have already acquitted the accused/petitioners in Criminal Petition Nos.178-K/2023 & 179-K/2023, due to the reasons mentioned in the detailed judgment of even date rendered in the abovementioned petitions, therefore, Criminal Petition Nos.110-K/2023 & 111-K/2023, have become infructuous and disposed of accordingly.

JUDGE

JUDGE

JUDGE

Islamabad, the
10th of June, 2026
Approved For Reporting
Khurram /Ghulam Muhammad Adnan L.C.